THE STATE

And

TALKMORE MUTANGA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
HELD AT BULAWAYO 27 JANUARY AND 24 FEBRUARY 2026

Criminal trial

Assessors:

Ms TC Mujokoro, for the state
S Huni, for the accused

NDUNA J*:* The accused was employed as a scout guard assigned to patrol a farm while armed. His mandate was to prevent and suppress artisanal mining activities on the property. On the date in question, he was conducting a patrol with a colleague when they encountered three individuals engaged in illegal gold panning along a riverbed within the farm. During the encounter, the accused discharged his firearm, fatally wounding one of the panners. One of the remaining individuals was apprehended, while the third escaped. The accused was subsequently charged with one count of murder arising from the fatal shooting. He entered a plea of not guilty and raised the defence of self-defence. At the close of the State case, the accused applied for discharge. The application was dismissed, and the matter proceeded.

Indeed, the defence raised by the accused is an available defence on a charge of murder.*CR Snyman Criminal Law 6 ed (2014) at 102* defines private defence as follows

> "A person acts in private defence, and her act is therefore lawful, if she uses force to repel an unlawful attack which has commenced, or is imminently threatening, upon her or somebody else's life, bodily integrity, property or other interest which deserves to be protected, provided the defensive act is necessary to protect the interest threatened, is directed against the attacker, and is reasonably proportionate to the attack".

Snyman draws a distinction insofar as the requirements of private defence are concerned and deals firstly with the requirements of the attack with which a person who

acts in private defence must comply, and secondly the requirements with which the defence must comply.

Insofar as the requirements of the attack are concerned, the attack must be unlawful, the attack must be directed at an interest which legally deserves to be protected and the attack must be imminent but not yet completed.

The leading authority which sets out the test for private defence is the decision in *S v De Oliveira 1993 (2) SACR 59 (A) at 63H-64A* which deals with the defence as follows:

> "From a juristic point of view the difference between these two defences is significant. A person who acts in private defence acts lawfully, provided his conduct satisfies the requirements laid down for such a defence and does not exceed its limits. The test for private defence is objective – would a reasonable man in the position of the accused have acted in the same way (*S* v *Ntuli* 1975 (1) SA 429 (A) at 436E)".

The requirements for the defence of private defence are therefore following:

(a) It must be directed against the attacker.

(b) The defensive act must be necessary. Here one considers whether there is a duty to flee and the defensive act must be the only way in which the attacked party can avert the threat to his/her rights or interest.

(c) There must be a reasonable relationship between the attack and the defensive act. Here it is not necessary that there be a proportional relationship between the nature of the interest threatened and the nature of the interest impaired.

(d) The attacked person must be aware of the fact that he/she is acting in private defence.

The test is an objective one and our courts have emphasised that one should not judge the events like an armchair critic, but rather place oneself in the shoes of the attacked person at the critical moment and bear in mind that at such point in time the attacked person only has a few seconds in which to make a decision.

The court should then ask whether a reasonable person would have acted in the same way in those circumstances. A person who suffers a sudden attack cannot always be expected to weigh up all the advantages and disadvantages of his/her defensive act and to act calmly.

In *S v Ntuli 1975 (1) SA 429 (A) at 437E* the court noted the following:

> "In applying these formulations to the flesh and blood facts, the Court adopts a robust approach, not seeking to measure with nice intellectual calipers the precise bounds of legitimate self-defence or the foreseeability or foresight of resultant death".

The accused invokes the defence of self-defence. The issue for determination is whether the factual circumstances disclose an unlawful attack upon the accused so as to entitle him to rely on that defence. The enquiry is whether, at the time he discharged the firearm, the accused was subjected to an actual or imminent attack by the deceased. The availability of self-defence depends on proof of an unlawful assault directed at the accused, placing his life or bodily integrity in danger, and necessitating a proportionate defensive response. The State's position is that no such attack occurred and that the accused shot the deceased in circumstances where his life was not threatened. If the evidence does not establish the existence of an unlawful and imminent attack, the defence of self-defence cannot arise.

Evidence was led by both the State and the accused. The State's case was that the deceased was engaged in illegal gold panning together with a State witness and a third individual who escaped. While they were working along the riverbed, they were confronted by the scout guard, Noah Chumachavazungu. Upon being called to order, one of the panners fled. The State witness was instructed to stop. The deceased also attempted to flee and was thereafter shot by the accused, resulting in his death.

The State produced exhibits, including a ballistic report relating to the firearm issued to the accused. The gunshot residues and recovered projectiles were attributed to that firearm. The State witness testified that the accused was positioned in thick bush at an elevated point above the valley where the panners were operating. In contrast, the accused contended that the spent cartridges and tested discharges were from warning shots he fired. He further sought to support his version by producing a pair of torn trousers, which he relied upon as indicative of a confrontation.

However, what is keen with his assertion that his trouser was torn is that what caused it to be so torn cannot be fully explained in this case. It is further alleged that the deceased had a knife. What is conspicuous about the knife is that it was not tendered in the case. No explanation was given for its absence. It was not recorded as having been recovered in the state case. It was simply spoken about and could not be produced.

The presence of a knife is clearly a lie. It cannot be accepted as having been carried by the deceased.

The evidence of the police officer who testified in the state case should be dismissed as a total fabrication. I therefore dismiss his evidence. He is the one who spoke of having recovered a knife, but failed to bring it to court. The acceptance of the story given by the state witness makes the defence of self defence in applicable in the case. There was none of events which could have led the accused to act in self-defence. He was clearly in ambush and he shot a single shot that hit the deceased and the victim passed on. He had not fired any warning shots. That makes his conduct illegal.

The story as given by the state witness is very clear and makes a lot of sense. If the deceased had wielded a knife, the knife should have been part of the story given by the defence. What is clear is that the accused waylaid the illegal miner and without warning he shot and killed him.

That amounts to the offence of murder.

The court would accordingly find the accused guilty of the offence as charged.

Sentence

It is said the accused had just recently assumed the duties of an armed guard. This I said further his first encounter with illegal gold miners. This exactly explains his conduct in this case. It was a result of inexperience that he shot the illegal miner. However, that makes it a serious offence in that the accused was supposed to apprehend the illegal miner and caused him to appear before the law. The law penalises illegal mining conduct. Further the offence is aggravated by the apparent efforts of the accused to defeat the prosecution.

The factors which aggravate a murder are specified under *s 47 (2)* of the Code. It provides that:

> "**47 Murder**
> (2) In determining an appropriate sentence to be imposed upon a person convicted of murder, and without limitation on any other factors or circumstances which a court may take into account, a court shall regard it as an aggravating circumstance if—

(a) the murder was committed by the accused in the course of, or in connection with, or as the result of, the commission of any one or more of the following crimes, or of any act constituting an essential element of any such crime (whether or not the accused was also charged with or convicted of such crime)—
(i) an act of insurgency, banditry, sabotage or terrorism; or
(ii) the rape or other sexual assault of the victim; or
(iii) kidnapping or illegal detention, robbery, hijacking, piracy or escaping from lawful custody; or
(iv) unlawful entry into a dwelling house, or malicious damage to property if the property in question was a dwelling house and the damage was effected by the use of fire or explosives; or
(b) the murder was one of two or more murders committed by the accused during the same episode, or was one of a series of two or more murders committed by the accused over any period of time; or
(c) the murder was preceded or accompanied by physical torture or mutilation inflicted by the accused on the victim; or
(d) the victim was murdered in a public place or in an aircraft, public passenger transport vehicle or vessel, railway car or other public conveyance by the use of means (such as fire, explosives or the indiscriminate firing of a weapon) that caused or involved a substantial risk of serious injury to by-standers.

(3) A court may also, in the absence of other circumstances of a mitigating nature, or together with other circumstances of an aggravating nature, regard as an aggravating circumstance the fact that—
(a) the murder was premeditated; or
(b) the murder victim was a police officer or prison officer, a minor, or was pregnant, or was of or over the age of seventy years, or was physically disabled."

The factors in this case do not include any of the factors listed above. A perusal of the *Sentencing Guidelines SI 146/2023* reveals that it lists that where the deceased was a participant in unlawful conduct mitigates the murder of the deceased. Therefore this could be safely be adjudged to be a mitigated murder offence. Further the accused has a single child and who solely depends on him. That persuades the court to be lenient. A sentence of 15 years imprisonment would be appropriate.

National Prosecuting Authority, state's legal practitioners
Coghlan and Welsh, accused's legal practitioners